

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0010253

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

IN THE MATTER OF:

J.G. WENTWORTH ORIGINATIONS, LLC

NATURE OF PROCEEDINGS: MOTION - OTHER: PETITION FOR APPROVAL FOR
TRANSFER OF PAYMENT RIGHTS

RULING

Petitioner is seeking judicial approval of the transfer of certain structured payment rights. The Structured Settlement Protection Act, set forth in Insurance Code sections 10134 et seq. (the “Act”), regulates the transfer of beneficial rights under structured settlement agreements. The Act was adopted by the Legislature in order “to protect structured settlement payees from exploitation by factoring companies.” (*RSL Funding, LLC v. Alford* (2015) 239 Cal.App.4th 741, 745.)

To be valid, a transfer of rights requires court approval and express judicial findings, *inter alia*, that the proposed transfer is in the best interest of the payee and will not contravene other applicable laws. (See Ins. Code, § 10139.5.) Because judicial approval is required, the petition filed with the Court must contain the information necessary to make such findings, including the payee’s name, age, marital status, whether there are minor or dependent children, or the amounts or sources of the payee’s income and financial resources. (See Ins. Code, § 10139.5(c).)

The current petition and motion was served on the annuity issuer and the structured settlement obligor. Neither party has opposed or objected to the transfer. The petition is supported by the declaration of the payee/transferor who currently resides in this County. The declaration contains the information required by the Act. Although the payee/transferor was advised to receive independent legal advice, he declined to do so and instead signed a waiver. Based on the information provided by Petitioner and the payee/transferor, the Court finds the transfer is in the best interest of the payee and grants approval to the transfer.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>